

SENATE No. 2591

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, September 8, 2025.

The committee on Higher Education to whom was referred the petition (accompanied by bill, Senate, No. 923) of Brendan P. Crighton and Manny Cruz for legislation relative to college credits while attending high school, report the accompanying bill (Senate, No. 2591).

For the committee,
Joanne M. Comerford

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An Act relative to college in high school.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 15A of the General Laws is hereby amended by inserting after
2 section 39 the following section:-

3 Section 39A. (a) All public institutions of higher education shall develop and adopt
4 written policies and procedures for accepting, for the purposes of course credit to satisfy degree
5 requirements, scores of advanced placement examinations, successful completion of early
6 college courses, successful completion of the International Baccalaureate Diploma Program,
7 successful completion of dual enrollment courses and successful completion of cooperative
8 education programs. In its policy, each public institution of higher education shall:

9 (i) establish conditions for granting course credit, including the minimum required scores
10 on advanced placement examinations and examinations for courses constituting the International
11 Baccalaureate Diploma Program;

12 (ii) establish whether credit will be granted for general education, major or elective
13 requirements at the public institution of higher education; and

(iii) include procedures related to the transferability of these credits to another institution of higher education consistent with the goals or recommendations of the MassTransfer program established under section 48.

(b) Upon request of an admitted student, a public institution of higher education, based on information provided by the applicant, shall determine and notify the admitted student regarding:

(i) the amount and type of any course credit that would be granted to the admitted student under the policy adopted pursuant to subsection (a); and

(ii) any other academic requirement that the admitted student would satisfy under the policy.

(c) All policies and procedures governing the award of course credit shall be posted on the public institution of higher education's website in a standardized format to be determined by the department, which the public institution of higher education shall update as necessary to reflect any changes in policies and procedures. Each public institution of higher education shall submit its policies and procedures, or any changes thereto, to the department which shall post each public institution of higher education's policies and procedures on the department's website.

(d) The department, in cooperation with the board of trustees of each public institution of higher education, including the University of Massachusetts, shall, not less than every 3 years or more often as it deems necessary, review the credit-granting policies of each public institution of higher education established in accordance with the requirements of this section and shall file a report with its findings and any recommendations with the clerks of the house of representatives and the senate and chairs of the joint committee on higher education. Each public institution of

higher education shall provide the board of higher education with all necessary data, in accordance with the federal Family Educational Rights and Privacy Act of 1974, 20 U.S.C. 1232g, to conduct the analysis.

SECTION 2. Chapter 69 of the General Laws is hereby amended by adding the following 2 sections:-

Section 40. (a) As used in this chapter, the following words shall have the following meanings, unless the context clearly requires otherwise:

“Early college”, a statewide joint high school and higher education initiative established through formal partnerships between Massachusetts public school districts and any accredited public, private or municipal institution of higher education located in the commonwealth, for the purpose of providing structured opportunities for high school students, particularly those from communities that are underrepresented in higher education, to earn college credit that is transferable and applicable toward a postsecondary degree or credential while continuing to meet high school graduation requirements.

“Designated early college program”, an early college partnership between a public high school and an accredited public, private or municipal institution of higher education officially sanctioned and approved by the state.

(b) There shall be an early college joint committee, hereinafter referred to in this section as the ECJC, which shall be responsible for: (i) monitoring and overseeing implementation of early college; (ii) approving statewide goals and standards for early college recommended by the office; and (iii) giving final approval to applicants for designation. The ECJC shall develop recommendations that include, but are not limited to, (i) how to advance the commonwealth’s

goals related to the sustainability, growth and accessibility of early college programming; (ii) how to assist the office in establishing and monitoring statewide performance requirements and enrollments; (iii) how to foster collaboration between the department of higher education and the department of elementary and secondary education on the early college initiative; (iv) how to advance the alignment of early college programming with statewide and regional workforce development goals; and (v) how to promote meaningful stakeholder engagement between institutions of higher education and public school districts. The ECJC shall consist of: the chair of the board of higher education; the chair of the board of elementary and secondary education; one member of the board of higher education, to be appointed by the chair; one member of the board of elementary and secondary education, to be appointed by the chair; and the secretary of education. The commissioner of elementary and secondary education and the commissioner of higher education, or their respective designees, shall serve as non-voting members of the ECJC.

(c) There shall be an office of early college, herein referred to in this section as the office. The office shall be administered and managed jointly by the commissioner of elementary and secondary education and the commissioner of higher education. Said commissioners shall enter into a memorandum of understanding, subject to the approval of the secretary of education, that governs the administration, coordination, and oversight of the office. The memorandum shall (i) define the respective roles and responsibilities of each department; (ii) establish mechanisms for shared decision-making and accountability; (iii) ensure, to the extent practicable, equitable participation by both departments in the management and strategic direction of the office; and (iv) provide a process for the secretary of education to resolve interagency matters that affect the coordination, oversight or implementation of early college programming. The memorandum shall be reviewed and updated not less than every 3 years, or more frequently as agreed upon by

the commissioners. The departments shall publish and maintain an updated description of the memorandum on their websites and shall notify the chairs of the joint committee on education and the joint committee on higher education 30 days in advance of any changes.

(d) The office shall: (i) oversee all early college programs; (ii) receive and review new applications for early college designation; (iii) recommend any designations to be awarded to applicants; (iv) provide logistical and technical support to applicants and designated early college programs as needed; (v) track and report on the performance of early college participants in the aggregate and disaggregate by student subgroup; (vi) evaluate the impact of early college on postsecondary access, student success and progress towards meeting statewide goals for early college; (vii) and identify and pursue further innovative approaches.

All early college programs shall:

(i) help prepare students by providing equitable access to college coursework and pathways that support successful transitioning to and completion of postsecondary education;

(ii) encourage the cooperative or shared use of resources, personnel and facilities between school districts, public and municipal colleges, independent colleges or universities, and employers;

(iii) emphasize involvement of parents or legal guardians and provide consistent counseling, advising and conferencing with parents and legal guardians so that families and students can make responsible decisions regarding course selection and may track the student's academic progress and success;

(iv) develop methods for early identification of potential participating students in the middle grades and through high school and provide outreach to those students to promote academic preparation and awareness of early college programs; and

(v) develop strategies to identify and engage currently underserved student populations in higher education.

(e) The office shall establish the standards and information it deems necessary to be included in an application for designation as an official early college program and shall develop a process to ensure that designated early college programs continue to meet said standards over time. Such standards shall encourage, where appropriate, alignment between general education courses and career-oriented courses and pathways. In developing and applying such standards, the office shall make reasonable allowance for regional differences, including the distinct challenges and capacities of rural and urban school districts, to ensure equitable access to early college opportunities across the Commonwealth.

(f) The office shall develop a streamlined designation application process which shall, to the extent practicable, avoid any unnecessary or duplicative application requirements for applicants who have, in a separate and previous application, been approved as a designated early college program and who plan on utilizing proven and effective early college models and pathways. In developing this process, the office shall consult with and solicit feedback from the early college working group established in subsection (l) and shall consider a model whereby an institution of higher education need not be required to submit an application for designation more than once.

(g) The office shall, at least once every 3 years, disseminate information and guidance on statewide and regional labor market trends and conditions to designated early college programs and applicants for designation in order to ensure early college pathways are attuned to statewide and regional labor market needs. As needed, the office shall collaborate with the executive office of labor and workforce development and other regional workforce intermediaries and agencies to determine the extent to which early college pathways are aligned with regional and statewide employment needs and shall update standards for designation accordingly.

(h) The office shall, in consultation with relevant stakeholders including, but not limited to, the working group established in subsection (l), develop recommendations for the creation and implementation of early college technical pathways including, but not limited to, pathways offered through vocational-technical schools and programs pursuant to Chapter 74. Such recommendations shall address any technical, regulatory or operational barriers to participation and identify strategies to support the integration of high-quality career and technical education into the early college framework and may include, without limitation, recommendations for amending designation criteria or standards to encourage participation by such programs. Nothing in this section shall be construed to require the inclusion of Chapter 74 programs in early college.

(i) Annually, the office shall review the per-credit reimbursements received by public and private institutions of higher education for their participation in a designated early college program. Annually, not later than December 1, the office shall submit recommendations on reimbursement rates for the forthcoming school year to the house and senate committees on ways and means, the joint committee on higher education, and the joint committee on education. In formulating its recommendations, the office may consider several factors including, but not limited to: (i) the site where the course is taught and the modality by which it is taught; (ii)

whether the course has extra costs associated with enrollment; and (iii) whether there are minimum numbers of participating students per section offered.

(j) The office shall propose, subject to approval by the ECJC, multi-year goals for the commonwealth for the attainment of college degrees and other post-secondary credentials for students participating in early college programs. Such goals shall include, but not be limited to, recommended overall statewide targets and goals as well as goals for increasing support for historically underserved student populations in higher education. The office shall be responsible for ensuring annual, timely public reporting of progress statewide and by districts and schools towards said goals.

(k) Annually, not later than September 30, the office shall submit detailed reports on all current and projected expenditures and fiscal operations related to early college to the ECJC. The ECJC may review and comment on the fiscal operations of the office and may issue formal recommendations to the office.

(l) The ECJC shall convene a working group for the purpose of advising the office and the ECJC on matters related to the development, implementation and expansion of early college programs in the commonwealth. The working group shall meet no fewer than 4 times annually and include, but not be limited to, representatives from organizations, associations and entities that are directly affected by or have a demonstrated interest in early college programs, including those representing students and families, secondary and post-secondary educational institutions, early college advocacy groups, state government and workforce and community stakeholders. The commissioner of elementary and secondary education and the commissioner of higher education shall determine the scope, structure and procedures of the working group and shall

167 regularly solicit input and recommendations from its members to inform policymaking and
168 strategic planning.

169 (m) Where required, each designated early college program shall enter into an agreement
170 with at least 1 postsecondary institution that provides students with opportunities to receive
171 postsecondary credits during the student's participation in the program. The agreement shall
172 establish each party's commitments and duties in administering the designated early college
173 program, including but not limited to program coordination, student support, faculty support,
174 career partnership coordinating and performance monitoring. Partner high schools and colleges
175 shall make best efforts to ensure that, consistent with goals and recommendations developed by
176 the MassTransfer program established in section 48 of chapter 15A, college credits automatically
177 transfer to Massachusetts public institutions of higher education upon completion of the program
178 and admittance to one of those public institutions. In addition, partnering high schools and
179 colleges may consider automatic admission to the participating college upon successful
180 completion of the early college program.

181 (n) All early college programs shall be open to all enrolled students, on a space available
182 basis. If the number of applicants exceeds the number of available seats in an early college
183 program, the designated early college program shall conduct a lottery to determine admission.
184 The lottery shall be conducted in a neutral and unbiased manner and shall not have the purpose
185 or effect of discriminating against any student or group of students on the basis of race, color,
186 national origin, sex, gender identity, sexual orientation, religion, disability or any other protected
187 characteristic under state or federal law. Nothing in this subsection shall be construed to prevent
188 a school or school district from instituting reasonable prerequisite conditions for students seeking

admission to a specialized or advanced course or program, provided that such conditions are designed to ensure student success in said courses or programs.

(o) Annually, by December 31, each designated early college program shall file a report with the office of early college, on performance measures, including, but not limited to the following categories:

(i) high school graduation rates of participating students;

(ii) percentage of participating students who complete the program;

(iii) percentage of participating students who gain any postsecondary credits;

(iv) credits earned by participating students in early college programs, including percentage of each program incorporating early college to gain at least 12 credits;

(v) percentage of participating students who immediately enroll in postsecondary education;

(vi) percentage of participating students who persist to a second year in postsecondary education;

(vii) percentage of participating students in a 6-year cohort who attain postsecondary degrees; and

(viii) college and career outcomes of participating students.

Annually, not later than July 1, the the commissioner of elementary and secondary education and the commissioner of higher education shall prepare an aggregate report for the senate and house chairs of the joint committee on higher education and the joint committee on

education, and shall establish and maintain a publicly accessible display of the overall success of early college programs, which shall include but not be limited to the above performance indicators and other relevant data.

Section 41. (a) Pursuant to regulations to be promulgated by the board of elementary and secondary education, as needed to implement this section, all public high schools shall offer a program to students before the completion of their 12th grade year that incorporates at least one of the following: (1) early college, as defined in section 40; (2) dual enrollment; (3) industry-recognized credentialing in high school; (4) advanced placement courses; (5) international baccalaureate programs; (6) cooperative education programs, or (7) other approaches for college and career programs. A school district may apply to the commissioner for a waiver from the requirements of this section, and the commissioner may grant such a waiver for a period not to exceed 3 years, provided the district demonstrates substantial hardship, including but not limited to significant fiscal or geographic barriers, and submits a written plan outlining the steps it will take to come into compliance with the requirements of this section. Upon expiration, waivers may be renewed at the discretion of the commissioner.

(b) The board of elementary and secondary education shall promulgate regulations to implement this section.

SECTION 3. The commissioner of the department of elementary and secondary education may authorize the use of funds from the Twenty-First Century Education Trust Fund established in section 35NNN of chapter 10 for early college programs. Such use shall be consistent with the purposes of the trust, including addressing persistent disparities in

230 achievement, improving educational opportunities and supporting relevant cross-agency and
231 district-level efficiencies.

232 SECTION 4. The commissioner of the department of elementary and secondary
233 education and the commissioner of the department of higher education shall enter into a
234 memorandum of understanding governing the administration, coordination and oversight of the
235 office of early college pursuant to subsection (c) of section 40 of chapter 69 of the General Laws
236 within 90 days of the effective date of this act.

237 SECTION 5. The office of early college shall submit its recommendations pursuant to
238 subsection (h) of section 40 of chapter 69 of the General Laws, inserted by section 2 of this act,
239 to the early college joint committee, established in subsection (b) of said section 40 of said
240 chapter 69, not later than 1 year after the effective date of this act.